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Case Number: 25STCV08186 Hearing Date: August 3, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Brooklyn

Gibson Greene

Plaintiff,

vs.

Aaron Edward Haith, II

, et al.,

Defendants.

Case No.:

25STCV08186

Hearing Date:

August 3, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion to Compel Arbitration

MOVING PARTY: Defendants Aaron Edward Haith, II,
Ethel Arias, and 4928 La Calandria, LLC; joined by A&H Realty Group, LLC

RESPONDING PARTY: Plaintiff Brooklyn Gibson Greene

Motion to Compel Arbitration

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

DISCUSSION

Motion to Compel Arbitration

Defendants

Aaron Edward Haith, II, Ethel Arias, and 4928 La Calandria, LLC, joined by
A&H Realty Group, LLC (“Defendants”) move the court for an order (1) compelling
plaintiff Brooklyn Gibson Greene (“Plaintiff”) to submit her claims to binding
arbitration and (2) staying this action pending resolution of arbitration.

1. Existence of Agreement to
Arbitrate

“ “The party
seeking to compel arbitration bears the burden of proving the existence of an
arbitration agreement, while the party opposing the petition bears the burden
of establishing a defense to the agreement’s enforcement.” ” (Beco v. Fast Auto Loans (2022)
86 Cal.App.5th 292, 302.)”
To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting
process.” ”

(Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)” “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement.” [Citations.]” A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’” (Ibid. [internal citations omitted].) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute” as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence.” (Ibid.; Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-166.)”

The court finds that Defendants have met their burden to provide a copy of an alleged agreement to arbitrate this controversy.

Defendants seek to arbitrate this action based on an arbitration provision in the Partnership Agreement that is the subject of the action. The Agreement in question is attached to the First Amended Complaint as Exhibit 1. Section 69 of that Agreement is titled “Mediation and Arbitration,” and states that “[i]f any dispute relating to this Agreement between Partners, or between one or more Partners and the Partnership, is not resolved through formal discussion within 14 days from the date a dispute arises, the Partners agree to submit the issue first before a non-binding mediator and to an arbitrator in the event mediation fails. The decision of the arbitrator will be binding on the Partners. Any mediator or arbitrator must be a neutral party acceptable to all Partners. The cost of any mediations or arbitrations will be shared equally by the Partners.” (FAC Ex. 1, ¶ 69.) The agreement bears Plaintiff’s handwritten signature and is dated July 18, 2024. (FAC Ex. 1, p. 16.)

2. Rescission of Partnership Agreement

Plaintiff argues that the Partnership Agreement should be rescinded because it was presumptively

procured through a breach of fiduciary duty and without sufficient consideration.

The court may

refuse to compel arbitration if it determines that grounds exist for rescission of the agreement. (Code Civ. Proc., § 1281.2.) A real estate agent bears “the same obligation of undivided service and loyalty that [the law] imposes on a trustee in favor of his beneficiary.” (Batson v. Strehlow (1968) 68 Cal.2d 662, 674-75.) A transaction between a trustee and a beneficiary “which occurs during the existence of the trust or while the trustee’s influence with the beneficiary remains and by which the trustee obtains an advantage from the beneficiary is presumed to be a violation of the trustee’s fiduciary duties.” (Probate Code, § 16004, subd. (c).) Such agreements are also presumed to lack sufficient consideration. (See Smith v. Zak (1971) 20 Cal.App.3d 785, 793 [applying Civil Code section 2322, since repealed and replaced with Probate Code section 16004].)

The court finds

that Plaintiff has not demonstrated that the Partnership Agreement should be rescinded. Plaintiff has not demonstrated that her cited authorities for rescission, set forth above, are applicable, because Plaintiff has neither alleged nor shown that Defendants were acting as Plaintiff’s real estate agent. Plaintiff alleges that defendant Haith acted as Plaintiff’s loan agent and contractor. (FAC ¶¶ 10, 11.) The allegation that Haith is a licensed real estate broker does not establish that Haith was Plaintiff’s real estate broker. (FAC ¶ 3.)

The court

therefore cannot refuse to compel arbitration based on a breach of fiduciary duty.

3. Unconscionability

Plaintiff also

contends that arbitration should not be compelled because the Partnership Agreement is unconscionable.

“[A]greements to

arbitrate [may] be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” ” (Beco v. Fast Auto Loans (2022) 86

Cal.App.5th 292, 302.)

“The

burden of proving unconscionability rests upon the party asserting it.” (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 126.)

“Unconscionability

entails an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.”

(Iyere, supra, 87 Cal.App.5th at p. 759 [internal quotations omitted].) “Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’” (Kho, supra, 8 Cal.5th at p. 125.)

The court finds

that Plaintiff has not established that the agreement is unconscionable because she has not demonstrated procedural unconscionability.

“Procedural

unconscionability pertains to the making of the agreement” (Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.)

It ““focuses

on two factors: ‘oppression’ and ‘surprise.’” [Citations.]

‘Oppression’ arises from an inequality of

bargaining power which results in no real negotiation and ‘an absence of meaningful choice.’ [Citations.] ‘Surprise’ involves the extent to which

the supposedly agreed-upon terms of the bargain are hidden in the prolix

printed form drafted by the party seeking to enforce the disputed terms.” (Zullo v. Superior Court

(2011) 197 Cal.App.4th 477, 484 [citations omitted].)

Plaintiff has not

presented any evidence of oppression or surprise. Plaintiff asserts that the Partnership Agreement is unconscionable because she relied upon Haith to draft the contract based on their long friendship. This is not evidence of superior bargaining power, nor is it evidence of hidden terms. Indeed, Plaintiff herself admits that Defendant Haith solicited Plaintiff’s input as to any specific terms in the Agreement. (Greene Decl. ¶ 8.) The terms that Plaintiff specified—prohibiting the sale of the subject property for twenty years and requiring her approval for single expenditures over \$1,000—are both present in the Agreement. (Greene Decl. ¶ 8; FAC Ex. 1 ¶¶ 60, 77.) The court cannot find based on this showing that the agreement is procedurally unconscionable.

Because Plaintiff

has not shown any procedural unconscionability, the court does not reach the issue of substantive unconscionability.

For the reasons

stated above, the court finds that Defendants have established that Plaintiff entered into a binding agreement to arbitrate her claims against Defendants. The court therefore grants the motion to compel arbitration.

ORDER

The court GRANTS

defendants Aaron Edward Haith, II, Ethel Arias, 4928 La Calandria, LLC, and A&H Realty Group, LLC's motion to compel arbitration.

The court orders

(1) plaintiff Brooklyn Gibson Greene and defendants Aaron Edward Haith, II, Ethel Arias, 4928 La Calandria, LLC, and A&H Realty Group, LLC to submit the claims alleged in the First Amended Complaint to arbitration and (2) this action is stayed pending completion of the arbitration.

The court sets an

Order to Show Cause Re: Completion of Arbitration for hearing on Monday, April 5, 2027, at 8:30 A.M. in Department 513.

The court orders defendants

Aaron Edward Haith, II, Ethel Arias, 4928 La Calandria, LLC, and A&H Realty Group, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 3, 2026

Robert B. Broadbelt III

Judge of the Superior Court